

Data Protection Notice for Candidates

Capgemini respects the privacy rights of individuals and is committed to handling Personal Data responsibly and in accordance with applicable laws.

The aim of this Data Protection Notice is to provide you with all the relevant information regarding processing of your Personal Data by Capgemini in the application and recruitment process.

Key data protection notions as defined under the Digital Personal Data Protection Act, 2023?

“Personal Data” means any data about an individual who is identifiable by or in relation to such data.

“Processing” in relation to personal data, means a wholly or partly automated operation or set of operations performed on digital personal data, and includes operations such as collection, recording, organization, structuring, storage, adaptation, retrieval, use, alignment or combination, indexing, sharing, disclosure by transmission, dissemination or otherwise making available, restriction, erasure or destruction.

“Data Fiduciary” means any person who alone or in conjunction with other persons determines the purpose and means of processing of personal data;

“Data Processor” means any person who processes personal data on behalf of a Data Fiduciary;

“Sensitive Personal Data” is defined under Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 and includes information like passwords, financial information like bank account details, credit/debit card details, medical and health records and history, sexual orientation, and biometric data.

For the purpose of this Data Protection Notice, **“Purpose”** means the reason(s) why the Data Fiduciary needs to collect and further process the Personal Data.

Who is collecting your Personal Data?

Capgemini Technology Services India Ltd, along with its affiliates and subsidiaries, hereafter referred to as “Capgemini”, are collecting and further processing your Personal Data in their respective capacity as Data Fiduciaries

What categories of Personal Data is processed?

Capgemini collects your Personal Data directly from you and/or indirectly from third-party authorized sources as permitted by applicable laws, which include but are not limited to:

- General information: Name, gender, age, date and place of birth;
- Contact information: address, telephone number, e-mail address, and emergency/ referral contacts;
- Education information: degrees, professional qualifications, trainings, assessment scores, CV/résumé, cover letters;
- Employment history: previous employer’s name, job titles/ positions, references, feedbacks, recommendations, previous compensation;
- Immigration data (on need basis, if you are an international worker): visa, passport and any other documentation legally required;
- Government Identifiers: PAN/ Passport, UAN;
- Information relating to previous applications you have made to Capgemini and/or any previous employment history with Capgemini;
- Any other information you voluntarily provide in recruitment process through interviews or assessment;
- Information from interviews and phone-screenings you may have, if any;
- Data generated by interviewers and recruiters, based on their interactions with you.
- Reference information and/or information received from background checks (where applicable), including information provided by third parties;

It is your responsibility to obtain consent from referees before providing their Personal Data to Capgemini. You may be required to provide additional Information for background verification. You may also be required to provide supporting documents which include your educational certificates & marksheets, previous employment related documents, payslips/ bank statements, Form 16, proof of identity and photographs for the evaluation of your profile for offer roll-out for the job position for which you have been interviewed.

Images or videos are captured on CCTV for security purpose during visit to office for interviews.

During any assessments, your photographs and videos may be captured at the time of proctoring, to identify possible suspicious activities and malpractices.

Please be aware that it is not mandatory to provide your Aadhaar Data as identification/ address proof, and any alternate Government ID proof (like driving license, PAN, voter ID card) can also be provided. In case any alternate identification/ address proof is not provided by you, and you provide your Aadhar information, you confirm and provide your consent to Capgemini to retain your Aadhaar Data and a copy of your Aadhaar for records and audit purposes.

Please be aware that Capgemini may collect your Aadhar information for statutory and legal compliance at the time of onboarding or anytime during employment.

Why and on what ground is Capgemini collecting your Personal Data?

Capgemini is collecting and further processing your Personal Data for several reasons, each of which is based on a specific legal ground as defined hereunder:

Main Purpose(s)	Legal ground(s)
Assessing your skills, qualifications, and interests against our career opportunities for recruitment and shortlisting of profiles	
Assessments	
Verifying your information and carrying out reference checks and/or conducting background checks (where applicable)	
Assisting you with obtaining an immigration visa or work permit (where required)	Reasonable and lawful purpose of Capgemini to offer job positions to candidates in accordance with their skill sets
Business operations, managing and tracking your application	Legitimate uses
Communication or interactions with you	Compliance with legal obligations
Complying with applicable laws, regulations, legal processes, or enforceable governmental requests	For taking steps to enter into a employment contract and/or for performance of a contract.
Data Analytics to improve Capgemini application and recruitment process	Consent, to the extent mandatory under the applicable law

Who has access to your Personal Data?

Capgemini, acting as Data Fiduciary shall have access to your Personal Data. However, such access shall be strictly limited to the relevant stakeholder(s) both from a functional and geographical scope. As a result, for the above-mentioned purposes, your Personal Data will be shared mainly with the following functions only on a need-to-know basis: human resources; general management, IT support, legal, finance, audit, & corporate investigations.

In addition, Capgemini may share your Personal Data with authorized third-party suppliers for the purposes of assessments, background verification, interview scheduling, engagements and other support for recruitment. These third-party suppliers may be in the geography where you have applied for job position. Where Capgemini relies on third-party suppliers acting as Processors, be ensured that Capgemini provides only limited and restricted access to your Personal Data. Capgemini conducts due-diligence and enters into contractual agreements with third-party suppliers to ensure that your Personal Data are processed safely and strictly according to Capgemini's instructions and in accordance with applicable data protection laws.

Capgemini may also use your Personal Data to comply with applicable legal and regulatory obligations and to respond to requests from local labour authorities, courts & tribunals, law enforcement agencies, and/ or regulatory bodies. Wherever required in connection with litigation and or other employment related matters, Capgemini may share your Personal Data with external lawyers for legal opinions and law enforcement/ regulatory agencies.

Capgemini operates globally which means your Personal Data may be stored and processed outside India. Capgemini employees, including recruiters, hiring managers and interviewers accessing your Personal Data, may be located outside India, thus implying a data transfer of your Personal Data. Where such a transfer takes place between Capgemini Group entities, it will be covered by Capgemini's Binding Corporate Rules ("BCR"). For further information on Capgemini's BCR, please click [here](#).

Your Personal Data shall be collected and kept securely with adequate managerial, technical, operational, and physical security measures and standards implemented by Capgemini in accordance with the applicable laws.

How long does Capgemini keep your Personal Data?

Capgemini shall keep your Personal Data for no longer than is necessary for the purpose(s) for which they were first collected.

If you apply for a job at Capgemini and your application is unsuccessful (or you withdraw from the process or decline our offer), Capgemini shall keep your Personal Data and supporting documentation for a period of 2 years from the date of collection. Capgemini retains this information for various reasons, including in case we face a legal challenge in respect of a recruitment decision, to consider you for other current or future jobs at Capgemini, data analytics and improvement of our recruitment processes. Post this period, your Personal Data will be destroyed or anonymized in accordance with Capgemini policy and applicable laws.

If you do not want us to retain your Personal Data for consideration of other positions, please contact our Data Protection Officer at dpo.in@capgemini.com.

If you are offered and accept employment with Capgemini, your Personal Data collected during the application and recruitment process will become part of your employment record.

What are your rights and how to exercise them?

In accordance with the applicable data protection laws, you have several rights regarding collection and processing of your Personal Data. You can request for review of your Personal Data, and/or request rectification or correction of any Personal Data that is found to be inaccurate or deficient. You may also request to delete your personal data.

If you wish to have any grievance redressed or exercise your rights, please contact our Data Protection Officer at dpo.in@capgemini.com.